

Admiralty (Assessors) Rules, 2018

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Admiralty (Assessors) Rules, 2018

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Admiralty (Assessors) Rules, 2018

Rule ADMIRALTY-ASSESSORS-RULES-2018 of 2018

Published on 29 June 2018

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Admiralty (Assessors) Rules, 2018

Published vide Notification No. G.S.R. 601(E), dated 29.6.2018

G.S.R. 601(E). - In exercise of the powers conferred by clause (a) of sub-section (2) of section 16 read with sub-section (1) of section 13 of the Admiralty (Jurisdiction and Settlement of Maritime Claims) Act, 2017 (22 of 2017

), the Central Government hereby makes the following rules namely:-

1.

Short title and commencement.

- These rules may be called the Admiralty (Assessors) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Admiralty (Jurisdiction and Settlement of Maritime Claims) Act, 2017;

(b)

The words and expressions used in these rules but not defined and defined in the Act shall have the respective meanings assigned to them in the Act.

3.

Qualification and experience required for appointment as an Assessor.

(1)

Every person desirous to be appointed as an assessor shall be a person having experience in the field of nautical or engineering or naval architecture or maritime claim settlement or damage by vessels or survey or arbitration or insurance or salvage or construction or repair of vessel or mortgage of vessels or environmental pollution or other special skill in the admiralty and maritime matters.

(2)

Without prejudice to the qualifications mentioned under sub-rule (1), the specific qualifications and experience required for the assessors in respective disciplines shall be as specified below.

(A)

Assessor under Nautical Discipline. -

(i)

Qualifications - Certificate of Competency as Master of a Foreign Going Ship as recognized by the Government of India.

(i)

Five years service, after obtaining the certificate of competency of second mate (Foreign Going), of which one year must have been in capacity of a Master on a foreign going ship.

(ii)

Experience in survey and inspection of merchant ships for five years or more.

(ii)

Experience -

(B)

Assessor under Engineering Discipline. -

(i)

Qualifications. - Certificate of competency of Marine engineer office class-I (Steam or Motor or combined steam and Motor) as specified in section 78 of the Merchant Shipping Act, 1958 or equivalent as specified in Section 86 of the said Act.

(ii)

Experience. - (i) Five year's service at sea of which one year service shall be as Chief Engineer or Second Engineer.

(ii)

Experience in survey and inspection of merchant ships for five years or more.

(C)

Assessor under Naval Architecture Discipline. -

(i)

Qualification. - Degree in Naval Architecture from a recognised University.

(ii)

Experience. - (a) Eight years practical experience in design, construction, survey and repairs of ships carried out in ship building or ship repairing yards or any design or survey Organisation after the completion of the degree course.

(b)

Experience in survey and inspection of merchant ship for five years or more.

(D)

Assessor for matters related to environment Pollution. -

(i)

Qualification. - The minimum qualification for Assessor on matters requiring expertise of a particular kind other than as referred in clause (A) to (D) of this sub rule shall be as may be decided by the High Court.

(ii)

Experience. - The experience requirements for such Assessor shall be as may be decided by the High Court.

4.

Duties of an assessor.

(1)

Every Assessor appointed under the Act shall provide such services or perform such functions as the High Court may assign to him in the course of the admiralty proceedings under the Act.

(2)

In particular, and without prejudice to the generality of the foregoing functions assigned by the High Court, the assessor shall, as may be required by the High Court, attend the admiralty proceedings, from time to time, and deliver his opinion in writing.

5.

Fee to be paid to an assessor.

(1)

Every assessor appointed under the Act and whose services are utilised by the High Court shall be eligible to be paid a fee as the High Court may decide, keeping in view, the nature of duties, the skill and the time required for performance of such duty by the assessor.

(2)

The fee so decided by the High Court shall be borne by the party on whose request the assessor has been appointed:

Provided that the High Court shall have the power to utilise the services of assessor even without request from any of the parties to the Admiralty proceedings, and in such case the High Court shall also have the power to apportion the said fee between the parties as it may deem appropriate under the circumstances of the case and in the interest of justice.

6.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may by order, for reasons to be recorded in writing, relax any of the provisions of these rules with respect to any matter contained therein.

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